

Court No. - 21

Case :- WRIT - C No. - 4870 of 2013

Petitioner :- Shri Shafi Ahmad

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Nripendra Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

On prayer made by Shri B.C. Rai, learned counsel for the petitioner, the case is directed to be put up as fresh on 12.2.2013 so as to enable him to file supplementary affidavit.

In the meantime, Shri Nripendra Mishra, learned counsel for the respondent nos. 1 and 2, may obtain instructions in the matter.

Order Date :- 29.1.2013

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Court No. - 21

Case :- WRIT - C No. - 4870 of 2013

Petitioner :- Shri Shafi Ahmad

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Nripendra Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Yogesh Chandra Gupta,J.

As prayed on behalf of Sri B.C. Rai, learned counsel for the petitioner, put up as fresh on 04th March, 2013.

Order Date :- 27.2.2013

N.S.Rathour

Court No. - 21

Case :- WRIT - C No. - 4870 of 2013

Petitioner :- Shri Shafi Ahmad

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Nripendra Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Yogesh Chandra Gupta,J.

On prayer made on behalf of Sri B.C. Rai, learned counsel for the petitioner, the case is directed to be put up as fresh on 12th March, 2013.

Order Date :- 4.3.2013

N.S.Rathour

Court No. - 21

Case :- WRIT - C No. - 4870 of 2013

Petitioner :- Shri Shafi Ahmad

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Nripendra Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Yogesh Chandra Gupta,J.

We have heard Sri B.C. Rai, learned counsel for the petitioner and Sri Nripendra Mishra, learned counsel for the Respondent Nos. 1 and 2.

Having heard the learned counsel for the parties, we are of the view that the matter requires consideration.

Admit.

Issue notice.

Notice on behalf of the Respondent Nos. 1 and 2 has been accepted by Sri Nripendra Mishra.

Therefore, no notice need be sent to the Respondents.

Sri Nripendra Mishra, learned counsel for the Respondent Nos. 1 and 2 states that Counter Affidavit on behalf of the said Respondents has already been filed in the Registry on 01st March, 2013.

Counter Affidavit is not on record.

Office is directed to trace the same and place it on record.

Sri B.C. Rai, learned counsel for the petitioner has filed today the Rejoinder Affidavit in reply to the aforesaid Counter Affidavit.

Let the matter be listed on 15th April, 2013.

The case is released from assignment / nomination to this Bench.

Let it be listed before the appropriate Bench.

Order Date :- 12.3.2013

N.S.Rathour

Court No. - 3

Case :- WRIT - C No. - 4870 of 2013

Petitioner :- Shri Shafi Ahmad

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Nripendra Mishra,S.C.

Hon'ble Pankaj Kumar Jaiswal,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard Sri B.C. Rai, learned counsel for the petitioner and Sri Nripendra Mishra, learned counsel for the respondents.
2. By this writ petition, the petitioner is praying for quashment of the order dated 24.5.2012 passed by the respondent no. 2 and further for writ of mandamus directing the respondents to restore the electricity connection of the petitioner's premises without insisting him to make payment of the assessed amount.
3. Brief facts of the case are that on 18.10.2017 at premises of the petitioner a surprise raid was conducted by the team of Paschimanchal Vidyut Vitran Nigam Ltd. and during inspection they detected theft of electrical energy and it was found that petitioner was involved in electric theft and directly connected the supply through main change over switch and change over switch and running the ice factory plant. A videography was recorded and detailed panchnama was prepared. On 16.3.2008 a provisional assessment bill of Rs. 5,50,935/- was served on the petitioner under Clause 8.1 of U.P. Electricity Supply Code, 2005 and petitioner was directed to file reply on or before 31.3.2008 failing which the assessment amount would be added in the account of the petitioner. The supply of the petitioner's premises was disconnected.
4. The petitioner being aggrieved by the assessment order dated 4.8.2009 passed by the respondent no. 2, assessing the electricity dues in pursuance of the order passed by the High Court on the alleged theft and unauthorized use

of electricity, has approached this Court by filing Writ-C No. 44825 of 2009 and it is alleged that the Assessing Authority has used incorrect formula and petitioner will be required to deposit half of the demand amount before filing the appeal. The co-ordinate Bench of this Court vide order dated 2.9.2009 has observed that the petitioner is running an ice factory and regular consumer of the electricity and the assessment will not be of such a higher stage that the deposit of half of the amount may become deterrent and dismissed the writ petition on the ground of alternative remedy of appeal under Section 127 of the Electricity Act, 2003 (in short 'The Act').

5. Neither an appeal under the Act was filed nor petitioner deposited 50% of the assessed amount, a final order of assessment has been passed. The petitioner also refused to deposit the compounding amount as provided under the Act and, therefore, an F.I.R. was lodged against him on 18.10.2007 at police station Katghar, district Moradabad being criminal case no. 1630 of 2007 punishable under Section 135 (12) of Electricity Act and charge-sheet was filed against him. In Sessions Trial No. 93 of 2008 petitioner was acquitted on the charges of theft of electricity. Thereafter, the respondents have challenged the said acquittal order by filing of appeal, which is pending for consideration before the court concerned.

6. During pendency of appeal an application was filed by the petitioner for restoration of electric supply on the ground that he was acquitted by the trial court and the charges of theft of electricity could not be proved against him and prayed that his electric supply be restored. As no action has been taken nor his application for restoration of electric connection was decided, petitioner filed Writ-C No. 6050 of 2012 before this Court for restoration of electric supply on the ground that the son of the petitioner has been acquitted under Section 135 (12) of Electricity Act and, therefore, he is entitled for restoration of electricity connection. On 6.2.2012 this Court disposed of the aforesaid writ petition by directing the respondent no. 2 to consider the petitioner's application and take appropriate decision expeditiously preferably within a period of six weeks from the date of production of certified copy of the order. In compliance of the order passed by this Court

the case of the petitioner was considered and his prayer for restoration of electricity supply has been rejected on the ground that unless and until he pays the demand made by the respondents no restoration or re-connection is permissible.

7. Learned counsel for the petitioner has drawn our attention to a judgment passed by the Apex Court in the case of **Gopaldas Udhavdas Ahuja and another Vs. Union of India and others, (2004) 7 SCC 33, J.M.D. Alloys Ltd. Vs. Bihar Electricity Board and Others, AIR 2003 SC 1354** and the judgments of this Court in the cases of **M/s. Citi Hotel Vs. Commissioner, Lucknow Division and Others, AIR 2009 (All.) 137** and **Kunwar Sarvesh Kumar Singh Vs. Paschimanchal Vidyut Vitran Nigam Ltd. and Others, (2012) 2 ADJ 509**, and submitted that once the petitioner has been acquitted by the trial court in respect of charge of theft of electricity, the demand/assessment made by the respondents automatically come to an end and respondents are bound to restore the electric supply of the petitioner. In alternative, he has submitted that the charges of theft of electricity has not been established against him and in criminal case he has been acquitted and, as such, by reasons of the provisions of Sub-clause (f), (g) and (h) of the proviso to Section 8.2 of Electricity Supply Code, 2005, the assessment made by the licensee against the petitioner is to be withdrawn and the connection of the premises in question shall be restored through the original meter.

8. To appreciate the aforesaid contention of learned counsel for the petitioner, we reproduce the Sub-clause (f), (g) and (h) of the proviso to Section 8.2 of Electricity Supply Code, 2005, which reads as under;

“(f) The cognizance of the offence under the Act shall not in any way prejudice the actions under the provision of the Indian Penal Code.

(g) The final assessment done by the licensees assessing officer in case of theft, is also subject to adjudication by the court.

(h) In case of the decision of the court that theft is not established, the charges levelled and assessment made by the licensee against the consumer or person shall be withdrawn in writing and the connection shall be restored through the original meter.]”

9. As per the averments made in the writ petition against the provisional

assessment a writ petition was filed before this Court being Writ-C No. 4485 of 2009. The aforesaid writ petition was dismissed on the ground of alternative remedy of filing of an appeal under Section 127 of the Electricity Act, 2003. Admittedly, no appeal was filed by the petitioner against the demand/assessment made by the respondents. It is also not in dispute that against the order of acquittal of petitioner, an appeal was filed by the respondents vide Criminal Misc. Appeal No. 55 of 2012 and till the matter is decided finally it cannot be said that the case of theft of electricity is not established. The appeal is nothing but it is continuity of original proceedings and thus petitioner will not get any help from the Sub-clause (f), (g) and (h) of the proviso to Section 8.2 of Electricity Supply Code, 2005. The decisions cited by the learned counsel for the petitioner are distinguishable on facts and the same will not be applicable in the facts and circumstances of the present case.

10. As per the inspection report number of irregularities were found by the inspecting team during investigation. A case of unauthorized use of electrical energy to run the ice factory was found against the petitioner. In spite of the order of this Court, petitioner never challenged the assessment order in appeal and, therefore, the same has attained finality. Unless and until he deposits the amount of assessment or his acquittal is affirmed by this Court/Supreme Court he is not entitled for restoration of electric supply. The respondent no. 2 rightly rejected his prayer for restoration of electric supply.

11. Writ petition, filed by the petitioner, has no merit and same is, accordingly, dismissed. No costs.

Order Date :- 13.3.2019
Shekhar

[Dr. Y. K. Srivastava, J.] [Pankaj Kumar Jaiswal, J.]